EUROPEAN COMMISSION
DG Competition

Case M.11253 - SAFRAN / PART OF COLLINS AEROSPACE's ACTUATION AND FLIGHT CONTROL ACTIVITIES

Only the English text is available and authentic.

REGULATION (EC) No 139/2004
MERGER PROCEDURE

Decision on the implementation of the commitments - Purchaser approval
Date: 17/06/2025

EUROPEAN COMMISSION

Brussels, 17.6.2025
C(2025) 3980 final

PUBLIC VERSION

In the published version of this decision, some information has been omitted pursuant to Article 17(2) of Council Regulation (EC) No 139/2004 concerning non-disclosure of business secrets and other confidential information. The omissions are shown thus […]. Where possible the information omitted has been replaced by ranges of figures or a general description.

Safran S.A.
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France

Subject: **Case M.11253 – SAFRAN / PART OF COLLINS AEROSPACE's ACTUATION AND FLIGHT CONTROL ACTIVITIES**
Approval of Woodward, Inc. as purchaser of Safran's Trimmable Horizontal Stabilizer Actuators and ancillary businesses following your letter of 10 April 2025 and the Trustee's opinion of 9 June 2025

Dear Sir or Madam,

1. FACTS AND PROCEDURE

(1) By decision of 4 April 2025 (the "Decision") based on Article 6(1)(b) in connection with Article 6(2) of Council Regulation (EC) No 139/2004 (the "Merger Regulation"), ([1]) the Commission declared the operation by which Safran S.A. ("Safran", France, or "Notifying Party") acquires sole control over part of the actuation business of Collins Aerospace ("Target"), a business unit of RTX Corporation ("RTX", United States) compatible with the internal market subject to conditions and obligations set out in the final commitments submitted on 27 March 2025 and annexed to the Decision (the "Commitments").

([1]) Council Regulation (EC) No 139/2004 of 20 January 2004 on the control of concentrations between undertakings, OJ L 24, 29.1.2004, p.1.

(2) In particular, under the Commitments, Safran commits to divest to an independent and suitable purchaser, with proven expertise in aerospace actuation, its North American actuation business, composed of Safran's electric trimmable horizontal stabiliser actuator system ("THSA") activity, secondary flight control actuator system ("SFCA") activity and nose-wheel steering gearbox activity located in Mexicali, Mexico, and Irvine, California, United States; and the entirety of Safran Electronics & Defense Canada Inc. located in Peterborough, Ontario, Canada, that houses Safran's Canada-based electronic control unit ("ECU") components activities (together: the "Divestment Business").

(3) The Divestment Business includes:

(a) all tangible assets (including two long-term leased facilities in Peterborough and, if required by the purchaser, a short-term sublease agreement for a facility for the Irvine employees and assets; and the engineering, manufacturing, testing and servicing equipment for the ECU activities located in the Peterborough facilities and for the actuation activities located in Mexicali and Irvine facilities (these facilities will be retained by Safran) and its related documentation);

(b) all intangible assets (including products under development and related rights, patents, software, intellectual property rights, and know-how);

(c) all licenses, permits and authorizations issued by any governmental organization for the benefit of the Divestment Business, to the extent transferable under applicable legal requirements;

(d) all customer contracts, commitments and customer orders of the Divestment Business, all customer credit and other records of the Divestment Business, all cooperation agreements with third parties; and

(e) all personnel (*circa* 240 people) currently employed by the Divestment Business – at the discretion of the potential purchaser. This includes […] employees identified as key personnel across three locations (i.e. Mexicali, Mexico; Irvine, United States; and Peterborough, Canada), with functions such as management, engineering (R&T, systems and components design, etc.) programme management, manufacturing (production control, testing, etc.), quality assurance, sales (procurement and purchasing policy, customer services, business analysis, etc.), supply chain, human resources, finance and IT.

(4) In addition, the Divestment Business includes a license to Safran's brands for a transitional period of up to […] after Closing, and a license to all and, if needed, any IP owned by Safran that is used to operate the Divestment Business (other than brands and the IP rights mentioned above). Finally, the Divestment Business includes Transitional Service Agreements ("TSAs") arrangements for a transitional period of up to […] after Closing (possibly extended for […] at the purchaser's request), on terms and conditions equivalent to those currently afforded to the Divestment Business by Safran, (i) to supply actuation products (including THSA systems) from the premises in Mexicali, and (ii) service agreements covering IT, back office, technical and other support functions.

(5) By letter of 10 April 2025, Safran proposed Woodward, Inc. ("Woodward" or "Proposed Purchaser") for approval by the Commission as purchaser of the Divestment Business, and submitted the Share and Asset Purchase Agreement (the "SAPA") entered into with Woodward on 19 December 2024 (the "Proposed

Agreement"), whereby Woodward agreed to acquire the Divestment Business. On 9 June 2025, the ING Bank N.V., London branch ("ING") (the "Trustee") submitted an assessment of Woodward's suitability as a purchaser and, in particular, has indicated that it fulfils the criteria of the purchaser requirements in Section D of the Commitments attached to the Decision. In this assessment, the Trustee also indicated that, on the basis of the Proposed Agreement, the Divestment Business would be sold in a manner consistent with the Commitments.

2. ASSESSMENT OF THE PROPOSAL

(6) According to paragraphs 20 and 21 of the Commitments, the Commission must verify that the Divestment Business is being sold in a manner consistent with the Commitments and that the purchaser fulfils the purchaser criteria. In particular, in its assessment of the Proposed Purchaser, the Commission must verify that:

(a) Woodward is independent and unconnected to Safran, considering the situation following the divestiture;

(b) Woodward has the financial resources to maintain and develop the Divestment Business as a viable and active competitive force in competition with Safran and other competitors. In particular, that Woodward is not excessively leveraged, has sufficient equity and profitability, has a turnover significantly larger than the turnover of the Divestment Business, and has sufficient means to finance the acquisition of the Divestment Business and to execute its business plan, including the capability to invest in the Divestment Business;

(c) Woodward has proven expertise in aerospace actuation and the ability and incentive to maintain and develop the Divestment Business as a viable and active competitive force in competition with Safran and other competitors;

(d) the acquisition of the Divestment Business by Woodward must neither be likely to create *prima facie* competition concerns nor give rise to a risk that the implementation of the Commitments will be delayed.

2.1. Brief description of the Proposed Purchaser

(7) Woodward is headquartered in Fort Collins, Colorado, United States, and is an independent designer, manufacturer, and service provider of control solutions for the aerospace and industrial markets. ([2])

(8) Woodward's aerospace segment represents 61% of Woodward's net sales. It designs, manufactures, and services systems and products for the management of fuel, air, combustion, and motion control in aerospace and defence applications. Woodward also provides aftermarket maintenance, repair and overhaul, as well as other services to commercial airlines, repair facilities, military depots, third party repair shops, and other end users. ([3])

(9) Through its aerospace segment, Woodward is also active in the supply of flight control actuation systems, with a market share of [5-10]% in the supply of primary flight control actuation systems ("PFCA"), and a market share of [0-5]% in the

([2]) Reasoned Opinion, Section 2.1.
([3]) Reasoned Opinion, Section 2.2.1.1.

supply of SFCA, at global level. Woodward also has limited activity in the supply of THSA. ([4])

2.2. Purchaser criteria

2.2.1. Independence from the Parties

(10) Pursuant to paragraph 20(a) of the Commitments, in order to be approved by the Commission, the purchaser must be independent from and unconnected to Safran and its affiliated undertakings. In addition, the purchaser should not be the seller in the main concentration (i.e. RTX Corporation) nor an undertaking ultimately controlled by RTX Corporation.

(11) According to the information provided by Safran and the Trustee, there are no cross-directorships, cross-shareholdings or joint ventures between Safran and its affiliated undertakings and Woodward. ([5])

(12) Woodward and Safran have certain common shareholders, most significantly Blackrock, which holds 9.96% of Woodward and 4.9% of Safran shares. However, according to the Trustee, none of such common shareholders has any representation on either of Safran's or Woodward's board of directors. ([6])

(13) With respect to commercial links, there are only limited trading activities between Woodward and Safran and its affiliates. In 2024 Woodward made sales to Safran for a total amount of […], which equates to […] of Woodward's sales and […] of Safran's total purchases that same year. Woodward does not make any purchases from Safran. ([7])

(14) The Trustee considers that there is no evidence of material dependency between each of Woodward and Safran, whether in terms of structural links or commercial agreements. ([8]) The Trustee further submits that Woodward is an independent company ([9]) and is therefore not controlled by RTX Corporation.

(15) Based on the information provided by Safran and taking into account the Reasoned Opinion submitted by the Trustee, the Commission understands that there are no structural links between Safran or its affiliated undertakings and Woodward, in the form of cross-directorships, cross-shareholdings or joint ventures. As regards the common shareholders of Safran and Woodward, the Commission understands that their positions are limited in both Safran and Woodward, and that they do not exercise any material influence in the commercial strategy of either Safran or Woodward. The Commission further understands that the commercial links between Safran and Woodward are limited and do not give rise to any material dependence of Woodward from Safran. Finally, the Commission understands that Woodward is not controlled by the seller in the main concentration, namely RTX Corporation. ([10]) Based on the above

([4]) Reasoned Opinion, Section 2.2.1.2.1.
([5]) Reasoned Opinion, Section 4.1.
([6]) *Ibid.*
([7]) *Ibid.*
([8]) Reasoned Opinion, Section 4.2.
([9]) Reasoned Opinion, Section 2.1.
([10]) Whereby the notion of control shall be interpreted pursuant to Article 3 of the Merger Regulation and in light of the Commission Consolidated Jurisdictional Notice under Council Regulation (EC) No 139/2004 on the control of concentrations between undertakings (the "Consolidated Jurisdictional Notice").

considerations, the Commission concludes that the Purchaser is independent from and unconnected to Safran and its affiliated undertakings.

2.2.2. Financial resources, proven expertise and incentive to maintain and develop the Divestment Business as a viable and active competitor

(16) Pursuant to paragraph 20(b) and (c) of the Commitments, the Purchaser shall have the financial resources, proven expertise and the ability and incentive to maintain and develop the Divestment Business which it acquires as a viable and active competitive force in competition with the Parties and other competitors.

2.2.2.1. Financial resources

(17) In relation to financial resources, paragraph 20(b) of the Commitments sets forth that the Purchaser shall not be excessively leveraged, shall have sufficient equity and profitability, shall have a turnover significantly larger than the turnover of the Divestment Business, and shall have sufficient means to finance the acquisition of the Divestment Business and the execution of its business plan, including investments.

(18) According to the Trustee's Reasoned Opinion, Woodward intends to pay the purchase price with […]. It should be noted that, in addition to cash holdings of USD 283 million, Woodward had undrawn credit facilities of USD 754 million on 31 December 2024. This significantly exceeds the agreed purchase price of […]. ([11])

(19) The Trustee further submits that Woodward is not excessively leveraged. Woodward's shareholder equity on 31 December 2024 was USD 2.2 billion, which is significantly higher than its total debt of USD 902 million (i.e. debt/equity ratio of 0.4x). Further, Woodward's debt to EBITDA ([12]) ratio of 1.2x is lower than the average of its peers reviewed by the Trustee, underlining its low leverage. ([13])

(20) Furthermore, it appears that Woodward is a profitable undertaking. It achieved net profits of USD 373 million in 2024 and has been profitable throughout the last five years. ([14])

(21) As regards its turnover, Woodward's net sales in 2024 were USD 3.3 billion (of which USD 2 billion related to the aerospace segment). Accordingly, Woodward's turnover is significantly larger than that of the Divestment Business, that had estimated revenues of […] in sales in 2024. ([15])

(22) Lastly, the Trustee considers that, as outlined in paragraph (18) above, Woodward has sufficient means to finance the acquisition of the Divestment Business and the execution of its business plan, including investments. The Trustee further notes that Woodward is listed on the NASDAQ Stock Exchange and may be able to raise additional financing through share or bond issuances, should the need arise. ([16])

([11]) Reasoned Opinion, Section 2.10.

([12]) EBITDA corresponds to a company's Earnings Before Interest, Taxes, Depreciation, and Amortization.

([13]) *Ibid.*

([14]) *Ibid.*

([15]) Reasoned Proposal, paragraph 14 (by time of submission, the accounting data for the Divestment Business' revenues of 2024 was still an estimate).

([16]) *Ibid.*

2.2.2.2. Proven expertise in aerospace actuation

(23) According to the Trustee's Reasoned Opinion, Woodward has a proven track record of developing, manufacturing and selling aerospace components and systems, both directly to airframers and to airframer suppliers.

(24) As regards aerospace actuation in particular, Woodward supplies a variety of products including PFCA and SFCA systems, incorporating both electromechanical and hydraulic technologies. Woodward is, respectively, the […] and […] largest participant in terms of market share in PFCA and SFCA globally. ([17])

(25) Woodward has existing relationships with many of the key customers of the Divestment Business including […]. ([18])

2.2.2.3. Incentive to maintain and develop the Divestment Business

(26) The Trustee notes that the acquisition of the Divestment Business coincides with Woodward's strategic interests.

(27) In particular, the Trustee notes that the acquisition of the Divestment Business will expand Woodward's existing product offering. According to the Trustee, to be selected as the supplier for the next generation single aisle ("NGSA") aircraft of major OEMs such as Airbus or Boeing, Woodward will have to integrate successfully the Divestment Business in the Woodward universe of companies and, in particular, to transfer successfully the operational assets of the Divestment Business from Mexicali (their current manufacturing site) to Woodward's existing industrial premises. The Trustee also notes that success for Woodward in being selected as a supplier for NGSA programmes will also depend on its ability to deepen relationships with these OEMs. ([19])

(28) Moreover, the Trustee indicates that financial forecasts for the Divestment Business presented by Woodward outline a business that is viable and is likely to remain an active competitive force. ([20])

(29) The management of the Divestment Business, […], expressed to the Trustee that they have a positive impression of Woodward as the potential purchaser […] to maintain and develop the business. ([21])

2.2.2.4. Conclusions

(30) Based on the information provided by Safran and considering the Trustee's Reasoned Opinion, the Commission understands that Woodward is a profitable undertaking that has a low debt leverage compared to other companies in the aerospace industry, and that has sufficient means to finance the acquisition of the Divestment Business and the execution of its business plan. The Commission further understands that Woodward has proven expertise in aerospace actuation, and has long-standing commercial relationships with the main customers of the Divestment Business. Lastly, the Commission understands that the acquisition of the Divestment Business aligns with Woodward's overall strategic interests, and that Woodward has strategic incentives to maintain and further develop the

([17]) *Ibid.*
([18]) *Ibid.*
([19]) Reasoned Opinion, Section 3.1.2.
([20]) Reasoned Opinion, Section 3.6.2.
([21]) Reasoned Opinion, Section 3.6.1.

Divestment Business as a core supplier of THSA systems. On this basis, the Commission considers the conditions set out in paragraph 20(b) and (c) of the Commitments to be met.

2.2.3. Absence of prima facie competition problems

(31) Pursuant to paragraph 20(d) of the Commitments, the transfer of the Divestment Business to a suitable purchaser must neither be likely to create *prima facie* competition concerns nor give rise to a risk that the implementation of the Commitments will be delayed. In particular, the Proposed Purchaser must reasonably be expected to obtain all necessary approvals from the relevant regulatory authorities for the acquisition of the Divestment Business.

(32) Woodward informed the Trustee that the only merger control clearance required for the acquisition of the Divestment Business by Woodward is from Brazil's competition regulator (CADE). ([22]) CADE unconditionally cleared the transaction on 31 January 2025. ([23]) The Trustee further submits that the transaction is not expected to trigger any pre-Closing foreign direct investment filings in any jurisdictions. […]. ([24]) The Trustee has not highlighted any risks that the implementation of the Commitments could be delayed due to implications related to regulatory approvals, including in relation to […]. ([25])

(33) The Trustee notes that Woodward and the Divestment Business are both present in the supply of THSA, SFCA and ECU.

(34) As regards the supply of THSA, the Trustee submits that Woodward's activities are marginal, with original equipment sales of less than […] in 2023 and a market share below [0-5]%. Those sales relate to legacy aircraft, with the last tender won […]. According to information submitted by Safran, the combination of Woodward and the Divestment Business will result in a limited increment in their combined market share, namely from [10-20]% to [10-20]%, in both the overall market for the supply of THSA systems, as well as the potential market for the supply of E-THSA systems. ([26]) As regards the potential narrower segments for the supply of THSA systems, as considered by the Commission in its Decision, the Trustee submits that in any case Woodward has a market share of below [0-5]%. ([27])

(35) As regards the horizontal overlap in the manufacture and supply of ECUs, ([28]) the Trustee submits that the combined market share of Woodward and the Divestment Business will be below [5-10]%. ([29]) While the Commission has in the past not assessed the market for the manufacture and supply of ECUs for use in the aerospace industry in detail, it considers, in line with the opinion of the Trustee, ([30]) that the overall limited presence of Woodward and the Divestment

([22]) Reasoned Opinion, Section 5.2.
([23]) *Ibid.*
([24]) *Ibid.*
([25]) Reasoned Opinion, Section 5.4.
([26]) Reasoned Opinion, Section 5.3.
([27]) *Ibid.*
([28]) According to Safran, ECUs are generic computer products that can be designed and produced by various suppliers and are not highly differentiated, and a number of players including, for example, TransDigm, Honeywell, Parker, Moog, BAE Systems and Rolls Royce are capable of designing and manufacturing ECUs. See Form RM, paragraph 217.
([29]) Reasoned Opinion, Section 5.3.
([30]) *Ibid.*

Business in this market, as well as the high number of existing alternative suppliers ([31]) would not give rise to any *prima facie* competition concerns.

(36) In relation to the manufacture and supply of SFCA, according to the Trustee's Reasoned Opinion, the combined market share of Woodward and the Divestment Business in the overall market is below [5-10]%. ([32]) According to the data provided by Safran, Woodward and the Divestment Business only overlap in the supply of SFCA for business jets, with a combined market share of [10-20]% in 2019. ([33]) The Commission therefore considers, in line with the Trustee's Reasoned Opinion, ([34]) that the acquisition of the Divestment Business by Woodward would not give rise to any *prima facie* competition concerns in relation to the manufacture and supply of SFCA.

(37) The Trustee further notes that the divestment transaction will give rise to vertical supply relations between Woodward's manufacture and supply of various components in the upstream market (including electronics, motors and sensors) that could be used as input in E-THSA systems manufactured downstream by the Divestment Business. However, the demand of the Divestment Business for such components represents less than [0-5]% of total global demand. Moreover, Woodward has a market share in the upstream market of less than [10-20]% globally, and a number of alternative large suppliers exists. Therefore, there is no *prima facie* risk of foreclosure in this respect. ([35])

(38) Moreover, the divestment transaction gives rise to a vertical relationship as regards the manufacture and supply of certain ECUs by the Divestment Business in the upstream market, that could be used as an input by Woodward in the manufacture of various systems in the downstream market, including THSA systems, SFCA systems and landing gear systems. However, given the Divestment Business' limited market share as a supplier of ECU (below [5-10]%) ([36]), as well as Woodward's limited purchasing share for ECUs, there is no *prima facie* risk of foreclosure in this respect. ([37])

(39) This *prima facie* assessment is based on the information available for the purpose of this buyer approval and does not prejudge the competition assessment of the acquisition of the Divestment Business by Woodward by a competent competition authority under applicable merger control rules.

2.3. Assessment of the Transaction Documents

(40) As indicated in paragraph (5) above, the Transaction Documents consist of the SAPA, covering the sale of shares and the transfer of the Divestment Business. The SAPA further includes […] exhibits covering, among others, the key draft terms of the license agreement for the use of Safran's brands and IP, as well as the key draft terms of the proposed TSAs, which regulate the transitional services

([31]) See footnote (27) above.
([32]) *Ibid.*
([33]) Form CO, Annex Ch. II. S.4.2.4.(ii). Woodward does not appear in the market share tables in the years after 2019, indicating limited activities in the supply of SFCA systems. In 2023 the Divestment Business had a market share of [0-5]% in the supply of SFCA for business jets and a [0-5]% market share in the other potential segments.
([34]) Reasoned Opinion, Section 5.3.
([35]) *Ibid.*
([36]) See paragraph (35) above.
([37]) *Ibid.*

to be provided to the Divestment Business by Safran, as indicated in paragraph (4).

(41) The Trustee reviewed the Transaction Documents and confirmed that they fulfil the condition of the Commitments to transfer the Divestment Business to a suitable purchaser. ([38]) The Commission agrees with that assessment.

(42) The Trustee considered that the terms of the Transaction Documents reflect Safran's obligations set out in the Commitments.

(43) In particular, the Trustee noted that the assets listed as included and excluded in the scope of the business to be sold under the SAPA are materially in line with the provisions set out in paragraph 5 of the Schedule to the Commitments. ([39])

(44) The Trustee further noted that the key draft terms of the TSAs are consistent with the content and purposes of the Commitments, and in particular with paragraph 10 of the Schedule to the Commitments. ([40])

(45) In particular, the Trustee noted that Woodward and Safran have provisionally agreed on transitional arrangements covering services related to engineering, HR, IT, operations, quality, sales and sourcing. The provisional timeline for such transitional arrangements ranges from […] and is therefore in line with the initial duration of […] provided in paragraph 10 of the Schedule to the Commitments. The cost for such transitional services will be equal to […], whereby the Trustee noted that […] represents administrative costs associated with Safran supplying such services to the Divestment Business. ([41])

(46) Furthermore, the Trustee noted that Woodward has made use of the option provided at paragraph 10(b) of the Schedule to the Commitments, for the provision of a supply agreement based on which Safran will continue operating the Divestment Business' actuation activities at Mexicali for a transitional period of […], extendable for an additional period of […]. Woodward and Safran have provisionally agreed on the key terms of an Operational Supply Agreement ("OSA"), under which Safran will continue to assemble THSAs on behalf of Woodward in Mexicali for a period of […] after Closing, to maintain the continuity of the Divestment Business' activities during the transition of such activities to Woodward's own facilities. ([42]) […], the Trustee noted that such arrangements are overall in line with paragraph 10 of the Schedule to the Commitments. ([43])

(47) As regards the provision of a brand and IP licensing agreement provided in paragraph 8 of the Commitments, the Trustee noted that Woodward decided not to make use of this option. ([44]) Instead, […]. ([45])

(48) On the basis of the above, the Trustee confirmed that the TSAs provisionally agreed between Safran and Woodward, comprising (i) transitional service agreements covering IT, back office, technical and other support functions, and

([38]) Reasoned Opinion, Section 6.5.
([39]) *Ibid.*
([40]) Reasoned Opinion, Section 6.3.6; Section 6.5.
([41]) *Ibid.*
([42]) Reasoned Opinion, Section 6.3.6.
([43]) Reasoned Opinion, Section 6.3.6; Section 6.5.
([44]) Reasoned Opinion, Section 6.3.6.
([45]) *Ibid.*

(ii) the supply agreement in relation to THSAs assembled at Safran's Mexicali facilities are in line with the requirements of the Commitments.

(49) It is noted that the terms of the SAPA provide for the possibility of extending the closing date of the Proposed Agreement up to […], which is not in line with the requirement set out in paragraph 5(b) of the Commitments in combination with the definition of "Closing Period" in Section A, paragraph 1 of the Commitments, providing for a closing period of up to […] months as of the approval of the transaction documents by the Commission. The Commission understands that this discrepancy is due to the fact that the SAPA was entered into on 19 December 2024, and therefore before the submission of the Commitments by Safran on 27 March 2025. The Commission further understands from the Trustee's submission that Safran and Woodward intend to close the Proposed Agreement in line with the timeline provided for in the Commitments. ([46]) For the avoidance of doubt, the present decision does not constitute an approval by the Commission of any modification to the Commitments, in particular with regard to the duration of the Closing Period as defined in Section A, paragraph 1 of the Commitments, or the conditions set out in paragraph 5 of the Commitments.

(50) The Commission further notes that pursuant to the terms of the SAPA, in addition to the issuance of the present decision, closing of the Proposed Agreement is subject to the following conditions:

(a) the receipt of regulatory approvals from the US DoJ, the UK CMA and CADE in Brazil regarding Safran's acquisition of Collin's actuation activities;

(b) the receipt of consents from certain customers (i.e. […]) and one supplier (i.e. […]) in relation to the transfer of their contracts to Woodward; and

(c) […].

(51) With regard to the pending regulatory approvals under point (a) above, the Trustee noted that their receipt is currently expected by […] 2025. ([47])

(52) As regards the customer and supplier consents in relation to the transfer of their contracts, the Trustee submits that all such approvals have been submitted, except for the approvals by […], which Safran expects to receive by […] 2025. ([48]) The Trustee does not raise any concerns in relation to the timely reception of the approvals by […]. ([49])

(53) […]. ([50])

(54) The Commission therefore considers that closing of the Proposed Agreement can be expected with sufficient certainty after the receipt of the outstanding customer consents mentioned in paragraph (52), the issuance of this decision and receipt of the regulatory approvals mentioned in paragraph (50)(a).

(55) In light of the above considerations, the Commission concludes that the Transaction Documents are consistent with the Commitments and that, accordingly, the Divestment Business are being transferred in a manner consistent with the Commitments.

([46]) Reasoned Opinion, Section 6.4.2.
([47]) *Ibid.*
([48]) Reasoned Opinion, Section 6.3.5.
([49]) *Ibid.*
([50]) *Ibid.*

3. CONCLUSION

(52) On the basis of the above assessment, the Commission approves Woodward as a suitable purchaser for the above-mentioned reasons.

(53) On the basis of the Proposed Agreement, the Commission further concludes that the Divestment Business is being sold in a manner consistent with the Commitments.

(54) This decision only constitutes approval of the proposed purchaser identified herein and of the Proposed Agreement. This decision does not constitute a confirmation that Safran has complied with its Commitments.

(55) This decision is based on paragraph 21 of the Commitments attached to the Commission Decision of 4 April 2025.

For the Commission

(Signed)
Olivier GUERSENT
Director-General
Directorate-General for Competition